



Employment of People with Disabilities

Overview

People with disabilities remain underrepresented in the federal government. But agencies have the tools to improve the status in the federal workforce. They may hire individuals with disabilities through competitive procedures or with special hiring authorities. This includes people with severe cognitive or emotional disabilities, or those with a history of having those disabilities. Veterans with service-connected disabilities of 30 percent or more can also be brought on via these means. Temporary employment is also an option.

[Executive Order 13548 -- Increasing Federal Employment of Individuals with Disabilities](#) provides specific steps that the Office of Personnel Management and agencies must follow to implement [Executive Order 13163](#), which called for the increased hiring of individuals with disabilities by the federal government. This EO also calls for OPM to identify and help agencies implement strategies to retain workers with disabilities. [EO 13548](#).

This Quick Start Guide covers the following Key Points:

1. [Equal employment opportunity](#)
2. [Qualified individual with a disability](#)
3. [Reasonable accommodation](#)
4. [Hiring flexibilities](#)
5. [Temporary employment options](#)
6. [Veterans with disabilities](#)

Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

Equal employment opportunity

- **Hadley:** The Rehabilitation Act does not require agencies to give individuals with disabilities preferential treatment in hiring and promotions. However, such treatment is permissible. The Rehabilitation Act does require the federal government to be a "model employer individuals with disabilities. It also requires agencies to have an affirmative action program. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Affirmative Action Plans and Goals](#). See also [29 CFR 1614.203](#) (a).
- Under [Executive Order 13548](#), agencies are required to develop agency-specific plans for "promoting employment opportunities individuals with disabilities." The plans "shall, consistent with law, include performance targets and numerical goals for employment of individuals with disabilities and sub goals for employment of individuals with targeted disabilities."
- [EO 13548](#) also states that agencies must "designate a senior-level agency official to be accountable for enhancing employment opportunities for individuals with disabilities and individuals with targeted disabilities within the agency, consistent with law, and for meeting the goals of this order."
- In implementing their plans for hiring individuals with disabilities, agencies, as permitted by law, are to increase the use of Schedule A hiring and "increase participation of individuals with disabilities in internships, fellowships, and training and mentoring programs." [EO 13548](#).

Qualified individual with a disability

- A disability, with regard to an individual, is:
 - i. A physical or mental impairment that substantially limits one or more of the major life activities of such individual;
 - ii. A record of such an impairment; or
 - iii. Being regarded as having such an impairment. [42 USC 12102](#) (1).
- For more information on determining whether an individual falls within the protections of the Rehabilitation Act, see the [Quick Start Guide: Disability Discrimination -- The Basics](#).
- An individual with a disability has to be qualified for the job at issue when challenging employment actions by federal agencies under the Rehabilitation Act of 1973. [42 USC 12112](#); [29 CFR 1630.4](#) (a).
- Under EEOC regulations, the "term 'qualified,' with respect to an individual with a disability, means that the individual satisfies the requisite skill, experience, education and other job-related requirements of the employment position such individual holds or desires and, with or without reasonable accommodation, can perform the essential functions of such position." [29 CFR 1630.2](#) (m).
- The employer's judgment as to what functions are essential is only one factor taken into consideration by the fact-finder who will ultimately determine the essential functions of a position. That fact-finder is the EEOC. The EEOC has final authority to determine what an "essential function is -- not the agency. Further, consistent with the authority granted to the EEOC by Congress, the EEOC has the authority to define the limits of "essential functions" in both regulation and guidance *Alvara v. Department of Homeland Security*, [114 LRP 42609](#), [121 MSPR 613](#) (Special Panel 2014)
- An agency can require that the individual not pose a direct threat to health and safety in the workplace. A "direct threat" is a significant risk of substantial harm to the health or safety of the

individual or others that cannot be eliminated or reduced by reasonable accommodation. The determination that an individual poses a "direct threat" must be based on an individualized assessment of the individual's present ability to safely perform the essential functions of the job. [29 CFR 1630.2](#) (r).

- Generally, it is unlawful for an agency "to use qualification standards, employment tests or other selection criteria that screen out or tend to screen out an individual with a disability or a class of individuals with disabilities, on the basis of disability, unless the standard, test, or other selection criteria, as used by the covered entity, is shown to be job related for the position in question and is consistent with business necessity." [29 CFR 1630.10](#) (a).
- Although the ameliorative effects of ordinary eyeglasses or contact lenses may be considered in determining if an individual is substantially limited in a major life activity, [29 CFR 1630.2](#) (j)(1)(vi), a agency may not "use qualification standards, employment tests, or other selection criteria based on an individual's uncorrected vision unless the standard, test, or other selection criterion, as used by the covered entity, is shown to be job related for the position in question and is consistent with business necessity." [29 CFR 1630.10](#) (b).
- For complete information on the issue of qualified individual with a disability, please see our [Quick Start Guide: Disability -- Qualified Individuals](#).

Reasonable accommodation

- An agency must reasonably accommodate the known physical or mental limitations of an otherwise qualified applicant or employee with a disability, unless it can show the accommodation would impose an undue hardship on its operations. [29 CFR 1630.9](#) (a).
- **Hadley:** Obviously, the employee's preference for a particular reasonable accommodation should be taken into account by the agency. But the employee's preference is not controlling and the agency may also consider its own needs in determining which of two possible accommodations is most reasonable. Ultimately, the complainant is entitled to reasonable accommodation and not the accommodation of choosing. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Preference of Employee](#).
- Agencies' selective placement coordinators work closely with qualified people with disabilities and hiring officials with employment needs. They help match applicant core skills along with applicant/employee reasonable accommodation needs with available jobs. Sometimes it may be necessary or advisable for federal hiring officials to make "a reasonable workplace accommodation" to perform job tasks. For more on selective placement coordinators, see [EEOC Guidance: The ABCs of Schedule A for the Disability Program Manager and/or Selective Placement Coordinator \(October 2023\)](#).
- Examples of workplace reasonable accommodation include:
 - Providing interpreters, readers, or other personal assistance.
 - Modifying job duties.
 - Restructuring work sites.
 - Providing flexible work schedules or work sites.
 - Obtaining accessible technology or other workplace adaptive equipment.
- Agencies cannot exclude or otherwise deny jobs or benefits to a qualified individual because of a known disability. They cannot deny reasonable accommodations for known physical or mental limitations of an otherwise qualified individual unless they can demonstrate the accommodation would pose an undue hardship on the operation of the business. [42 USC 12112](#) (b).
- For more information on reasonable accommodation, see our [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#).

Hiring flexibilities

- People with disabilities who have never been employed with the federal government may apply for employment through the Office of Personnel Management or through agencies that have delegated examining authority. This method requires candidates to compete through the normal procedures prescribed by OPM.
- People with disabilities may also be noncompetitively appointed under special placement hiring authorities into excepted service Schedule appointments. [5 CFR 213.3102](#) (u). These schedules are for positions that are not of a confidential or policy-determining character within the Senior Executive Service. [5 CFR 213.3101](#). These authorities allow noncompetitive appointment to positions as follows:
 - Under [5 CFR 213.3102](#) (u)(3)(i), an agency must require proof of an applicant's intellectual disability, severe physical disability or psychiatric disability prior to making an appointment under this section.
 - An agency can accept, as proof of disability, appropriate documentation issued by a licensed medical professional; a licensed vocational rehabilitation specialist; or any federal agency, state agency, or an agency of the District of Columbia or a U.S. territory that issues or provides disability benefits. [5 CFR 213.3102](#) (u)(3)(ii).
 - Appointments under this authority may be permanent, time-limited, or temporary. [5 CFR 213.3102](#) (u)(4)-(5). An agency may noncompetitively convert to the competitive service an employee who has completed two years of satisfactory service in a nontemporary appointment under this authority. [5 CFR 213.3102](#) (u)(6).
 - Readers, interpreters, and personal assistants for employees with severe disabilities may be appointed directly into excepted service appointments. These employees may be converted to a competitive service appointment after they have completed one year of satisfactory service, and their employment in this position is no longer necessary for reasons beyond management's control, such as resignation or reassignment of the person being assisted. [5 CFR 315.711](#).

- Ordinarily, agencies must consider displaced employees on the Career Transition Assistance Plan and Interagency Career Transition Assistance Plan lists prior to hiring someone from outside the agency. However, excepted appointments, temporary appointments under 121 days, appointment of 10-point veteran preference eligibles (if reached through an appropriate appointing authority), and conversion from an excepted appointment that confers eligibility for a career or career-conditional appointment in the competitive service are all appointments that may be made without considering displaced employees first. [5 CFR Part 330](#).
- The complainant, who was eligible for Schedule A hiring because of her hearing impairment, was not subjected to disability discrimination when she was not selected for a file clerk position. Although an agency may use Schedule A to hire individuals with targeted disabilities noncompetitively, it is not required to do so. *Complainant v. Department of Veterans Affairs, 0120131609, 115 LRP 352* (EEOC OFO 2014).

Temporary employment options

- An agency may make a temporary appointment based on proof of disability when either:
 - It is necessary to observe the applicant on the job to determine whether he is ready to perform the position's duties. The hiring agent may convert the individual to a permanent appointment whenever it determines he can perform the duties. [5 CFR 213.3102 \(5\)\(i\)](#).
 - The work is of a temporary nature. [5 CFR 213.3102 \(u\)\(5\)\(ii\)](#).
- An agency may noncompetitively convert to the competitive service an employee who completed two years of satisfactory service in a nontemporary appointment. [5 CFR 213.3102 \(u\)\(6\)](#).

Veterans with disabilities

- Federal agencies have the authority, by law, to give noncompetitive appointments to any veteran with a compensable, service-connected disability of 30 percent or more, officially documented by the Department of Defense or the Department of Veterans Affairs. Employees must serve initially under a temporary appointment not limited to 60 days or fewer. Such employees may be eligible for noncompetitive conversion to permanent appointments after successfully performing on a temporary or term appointment. [5 USC 3112; 5 CFR 316.402; 5 CFR 315.707](#).
- **Hadley:** It is not discriminatory for an agency to use its 30 percent hiring authority to place a qualified disabled veteran into a position prior to reviewing any other applications. Agencies are authorized to make such appointments without advertising the position under [5 CFR 316.402 \(b\)\(5\)](#). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Veterans Preference](#).
- Disabled veterans who satisfactorily complete approved training under the Department of Veterans Affairs' Vocational Rehabilitation Program may be appointed noncompetitively under a status quo appointment which may be converted to a career or career-conditional appointment. [5 CFR 3.1; 5 CFR 315.604](#).

Other Resources

- [Quick Start Guide: Disability Discrimination -- The Basics](#)
- [Quick Start Guide: Reasonable Accommodation -- Disability -- The Basics](#)
- [The ADA Amendments Act](#)
- [ADAAA Key Provisions Chart](#)
- [Job Accommodation Network](#)
- [Quick Start Guide: Career and Career-Conditional Appointments](#)
- [Quick Start Guide: Veterans -- Hiring](#)
- [Checklist Plus+: Using Schedule A Hiring Authority](#)
- [Employment of Veterans and Servicemembers Roundup](#)
- [Executive Order 13518: Interagency Council on Veterans Employment](#)
- [Executive Order 13163: Increasing the Opportunity for Individuals with Disabilities to be Employed by the Federal Government](#)
- [Executive Order 13548: Increasing Federal Employment of Individuals with Disabilities](#)
- [OPM Guide to Processing Personnel Actions: Chapter 10 -- Nonstatus Appointments in the Competitive Service](#)
- [OPM Guide to Processing Personnel Actions: Chapter 11 -- Excepted Service Appointments](#)
- [OPM Guide to Processing Personnel Actions: Chapter 14 -- Promotions, Changes to Lower Grade Reassignments, Position Changes and Details](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 02 -- Defining Qualified Individuals, Section H: Demonstration of Qualified](#)

- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 14 -- Rehabilitation Act, Subchapter 04 -- Processing Complaints Under Rehabilitation Act, Section -- Intentional Discrimination Cases](#)
- [Broida Guide to Merit Systems Protection Board Law: Chapter 15 -- Discrimination, Subchapter 02: Rehabilitation Act -- Disabling Conditions, Section B -- Prima Facie Case, Accommodation Requirements -- Subsection 08 -- Limitation on General Employability](#)
- [Broida Guide to Merit Systems Protection Board Law: Chapter 15 -- Discrimination, Subchapter 02: Rehabilitation Act -- Disabling Conditions, Section B -- Prima Facie Case, Accommodation Requirements -- Subsection 10 -- Qualified Disabled Employee](#)

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